TERMS OF SERVICE

Alula Finance Corp

Last updated: 30 April 2026

IMPORTANT NOTICE. These Terms of Service (the **"Terms"**) constitute a legally binding agreement between you and the Operator (as defined below). They govern your access to and use of the Alula Finance website, application, user interface and any related services made available by the Operator. Please read these Terms carefully before connecting your wallet, submitting any transaction or otherwise interacting with the Services. By accessing the Site or using any of the Services, you acknowledge that you have read, understood and agree to be bound by these Terms in their entirety. If you do not agree, you must not access or use the Services.

RISK WARNING. The Services provide a non-custodial user interface to a permissionless lending protocol deployed as autonomous smart contracts on the Stellar network (the **"Protocol"**). Supplying, borrowing, leveraging (multiplying), being liquidated, and swapping digital assets involve substantial financial, technical, regulatory and operational risks, including the risk of total loss of the assets you commit to the Protocol. The Operator does not provide investment, financial, legal, tax or accounting advice. You are solely responsible for assessing whether the Services are appropriate for you and for any decision you make in connection with them.

1. Introduction and Acceptance

1.1. These Terms constitute a binding electronic agreement (the **"Terms", "Agreement"**) between you (the **"User", "you", "your"**) and **Alula Finance Corp,** a corporation (Sociedad Anónima) duly organised and existing under the laws of the Republic of Panama, registered under No. 155782425, with its registered office at 55th Street East, SL55 Building, 21st Floor, Office 3, Panama City, Republic of Panama (the **"Operator", "we", "us", "our"**). The Operator together with the User are referred to herein as the "Parties" and individually as a "Party".

1.2. These Terms, together with the Privacy Policy and any additional policies, notices or guidelines published by the Operator on the Site (collectively, the "Policies"), govern your access to and use of: (a) the websites located at *https://alula.finance* and *https://dev.alula.finance* (the **"Site"**); (b) any application, dashboard, widget or other user interface that links to or interacts with the Protocol; and (c) any related services, features, functionality, content and tools made available through the Site (collectively, the **"Services"**).

1.3. BY ACCESSING THE SITE, CONNECTING YOUR DIGITAL ASSET WALLET, INITIATING ANY TRANSACTION THROUGH THE SERVICES, OR OTHERWISE

INTERACTING WITH ANY PART OF THE SERVICES, YOU EXPRESSLY ACKNOWLEDGE AND AGREE THAT: (A) YOU HAVE READ, UNDERSTOOD AND ACCEPTED THESE TERMS AND ALL POLICIES; (B) YOU ARE OF LEGAL AGE AND HAVE THE LEGAL CAPACITY TO ENTER INTO A BINDING AGREEMENT IN YOUR JURISDICTION; (C) YOU UNDERSTAND THE TECHNICAL, FINANCIAL AND REGULATORY RISKS DESCRIBED HEREIN; AND (D) YOU ARE NOT ACCESSING THE SERVICES FROM A RESTRICTED JURISDICTION.

1.4. The Operator may, at any time and at its sole discretion, modify, supplement or replace these Terms. Changes become effective upon publication of the updated Terms on the Site, with the revised **"Last updated"** date. Your continued access to or use of the Services after the effective date of such changes constitutes your acceptance of the revised Terms. You are responsible for reviewing these Terms periodically. If you do not agree to any modification, you must immediately cease all use of the Services and disconnect your wallet.

2. Definitions

In these Terms, capitalised terms have the meanings set forth below, unless the context requires otherwise. Other capitalised terms are defined throughout these Terms.

"Applicable Law" means all laws, regulations, statutes, ordinances, treaties, judgments, orders, decrees, rulings, sanctions, guidance and policies of any governmental, regulatory or self-regulatory authority that apply to the Operator, the User or the Services, in any relevant jurisdiction.

"Bad Debt" means the situation in which the value of an Obligation's collateral is, after liquidation, insufficient to cover the value of its outstanding Borrow, as further described in Section 9.6.

"Borrow" means the act of taking out a loan of a Digital Asset from a Pool by an Obligation, against eligible collateral, as further described in Section 7.4.

"Bridge" means any third-party token bridge, cross-chain message-passing protocol, wrapped-asset infrastructure or other mechanism enabling the transfer of value or messages between the Stellar network and any other distributed ledger network.

"Close LTV" means the loan-to-value threshold above which an Obligation becomes eligible for liquidation, configured per Pool and as described in Section 9 and the Documentation.

"Collateral Only" means a deposit type whereby a Digital Asset is deposited into a Pool solely as plain collateral, without earning yield, as further described in Section 7.3.

“Digital Asset” means a cryptographically secured digital representation of value that uses distributed ledger technology and that is supported by the Protocol from time to time, including without limitation XLM, USDC, EURC and any other asset listed within the Site.

“Documentation” means the technical, user and risk documentation made available by the Operator at https://docs.alula.finance, as updated from time to time.

“Health Factor” means the ratio of the value of an Obligation’s collateral to the value of its outstanding Borrow, as defined and computed by the Protocol; an Obligation with a Liquidation Health Factor below 1 is eligible for liquidation.

“Insurance Fund” means the per-market safety buffer smart contract that absorbs residual losses after liquidations, as further described in the Documentation.

“Insolvency LTV” means the Pool-specific loan-to-value threshold, set and amended through the Time-lock governance process, at or above which an Obligation is treated as insolvent and is subject to insolvency-mode liquidations under the Protocol. The current value and operational effect of the Insolvency LTV applicable to each Pool are set out in the Documentation available on the Site.

“Liquidation” means the partial or full sale, by a third-party liquidator, of an Obligation’s collateral to repay part of its Borrow, executed at a configurable discount, when the Obligation is no longer healthy, as further described in Sections 7.5 and 9.2.

"Market Admin" means the person or entity assigned as the administrative actor for a specific market of the Protocol, with authority to manage pool and market configuration (including through the Time-lock governance process), update market and pool status flags, configure fee beneficiaries, update the swap provider, and transfer the administrative role, all as further described in Section 3.3 and in the Documentation available at https://docs.alula.finance/tech-docs/.

“Multiply (Leverage)” means the composable batch operation that allows a User to open a leveraged position in a single atomic transaction by combining a flash borrow, a swap on an external decentralised exchange, a deposit and a borrow, as described in Section 7.6.

“Network Fee” means the fee charged by the Stellar network, or any other applicable distributed ledger network, for processing and confirming a transaction. Network Fees are not paid to the Operator.

“Obligation” means a position held by a User within the Protocol, identified by an ObligationKey (combining a wallet address and an optional 32-byte seed) and comprising any combination of supplies, plain collateral and Borrows, as described in the Documentation.

“ObligationKey” means the identifier of a specific Obligation within a market, combining a Wallet Address with an optional seed that distinguishes Obligation types (standard, earn-only, paired).

“Open LTV” means the loan-to-value threshold against which the Protocol calculates a User’s borrowing capacity, configured per Pool.

“Operator” means the legal entity defined in Section 1.1 that operates the Site and the Services.

“Oracle” means the SEP-40-compliant price oracle (or aggregated oracle) referenced by the relevant market within the Protocol to obtain prices of Digital Assets.

“Pool” means an asset-specific liquidity pool deployed as part of a market within the Protocol.

“Protocol” means the Alula Finance lending protocol consisting of autonomous smart contracts deployed on the Stellar network and any future networks supported by the Operator, including all markets, Pools, Insurance Funds, oracles and ancillary contracts.

“Restricted Jurisdiction” means any jurisdiction listed in Section 5 from which use of the Services is prohibited, including any jurisdiction added thereto from time to time.

“Site” means the websites and user interfaces defined in Section 1.2.

“Smart Contract” means self-executing software code deployed on the Stellar network or any other supported network that automatically enforces the terms encoded therein without human intervention.

“Stellar” means the Stellar public blockchain network and its smart-contract execution environment (Soroban), and any associated layer-1 or layer-2 networks supported by the Protocol.

“Supply” means the act of depositing a Digital Asset into a Pool to earn yield, as described in Section 7.3.

“Swap Service” means the user-interface feature that aggregates and routes orders to Swap Providers, as described in Section 7.7.

“Swap Provider” means any independent third-party service provider, exchange, automated market maker, liquidity router or aggregator integrated with the Swap Service from time to time, the current list of which is published at https://dev.alula.finance/transparency.

“Time-lock” means the queue-and-wait governance mechanism applicable to changes in pool and market parameters within the Protocol, as further described in Section 9.

“Trustline” means the Stellar-network mechanism by which a wallet authorises itself to hold a particular issued asset, as required by the Stellar protocol prior to interacting with such asset.

"Wallet" means a non-custodial Digital Asset wallet, browser extension, hardware device or mobile application controlled solely by the User, used to authenticate to the Services and to sign transactions on the Stellar network.

"Wallet Address" means the alphanumeric public address representing the User's Wallet on the Stellar network, used to identify the User in the Protocol.

3. Nature of the Services

3.1. Front-end interface only

The Services consist of a non-custodial graphical user interface that enables a User to interact with the Protocol. The Operator: (a) does not operate, control or own the Protocol, the Stellar network, any Pool, any Oracle or any Swap Provider; (b) does not execute, match, settle, clear or otherwise effect any transaction on behalf of the User; and (c) does not act as a counterparty to any User in respect of any Supply, Borrow, Multiply, Liquidation or Swap. All on-chain operations are executed by autonomous Smart Contracts and broadcast directly from the User's Wallet.

3.2. Non-custodial nature

The Services are strictly non-custodial. At no point during a User's interaction with the Protocol does the Operator hold, store, control or otherwise have access to the User's Digital Assets, private keys, seed phrases, recovery codes or wallet credentials. Any Digital Assets supplied to or borrowed from the Protocol are held within the Smart Contracts on-chain and are not in the custody of the Operator. The Operator cannot freeze, seize, reverse, modify or otherwise interfere with any User position or transaction.

3.3. Autonomous Smart Contracts

Once deployed, the Smart Contracts comprising the Protocol operate automatically and deterministically based on their published code. The Operator does not have any unilateral ability to halt, censor, alter or roll back any user transaction, restore lost funds, recover assets sent to incorrect addresses or otherwise override the rules encoded in the Smart Contracts. Certain configuration parameters of the Protocol may be modified by a market admin only through a Time-lock governance process described in the Documentation; such changes do not give the Operator any custodial power over user assets.

3.4. No financial services

The Operator is not a bank, credit institution, investment firm, payment institution, e-money institution, money services business, broker-dealer, securities exchange, virtual asset service provider, custodian, asset manager or fiduciary. The Operator does not solicit deposits, does not offer interest-bearing accounts, does not extend credit and does not advise on the purchase, sale or holding of any Digital Asset. Any rates, yields, APYs or returns displayed on the Site are estimates derived algorithmically from on-chain data and are not promised, guaranteed or underwritten by the Operator.

3.5. No advice

Nothing on the Site, in the Documentation or otherwise communicated by the Operator constitutes investment, financial, trading, legal, tax, accounting or any other professional advice. All information made available through the Services is provided for general informational purposes only. You are solely responsible for conducting your own due diligence and, where appropriate, for obtaining advice from qualified professionals before using the Services or making any decision concerning Digital Assets.

3.6. Service availability

The Site is intended to be accessible on a 24/7 basis. However, the Operator makes no representation or warranty as to the availability, performance or continuous operation of the Site or any feature thereof. The Operator may, at any time and without notice or liability: (a) suspend, restrict or discontinue access to all or part of the Services for maintenance, security, regulatory, legal or operational reasons; (b) modify, withdraw or replace any feature; (c) impose technical, geographic or quantitative limits on access. The unavailability of the Site does not, by itself, prevent the Protocol from continuing to operate on-chain, but it may impair the User's ability to interact with the Protocol through the Operator's interface. The User is responsible for ensuring its ability to interact with the Smart Contracts directly should the Site become unavailable.

3.7. Open-source and third-party software

Portions of the Smart Contracts may be made available under open-source licences. Such licences govern the use of the underlying source code separately and in addition to these Terms; in the event of conflict between an open-source licence and these Terms with respect to use of the source code, the open-source licence prevails. The Services rely on third-party infrastructure, including without limitation the Stellar network, RPC providers, wallet software (e.g., Freighter, Wallet Connect-compatible wallets), block explorers and Oracles. The Operator does not control, endorse or assume liability for any such third-party software or service.

4. Eligibility and User Representations

By accessing or using the Services, you represent and warrant to the Operator, on a continuing basis, that:

(a) you are at least eighteen (18) years of age, or the age of legal majority in your jurisdiction (whichever is higher), and you have the full legal capacity to enter into and perform your obligations under these Terms;

(b) you are not located in, ordinarily resident in, organised under the laws of, or a citizen or national of any Restricted Jurisdiction, and you are not accessing the Services on behalf of any person who is so located, resident, organised, citizen or national;

(c) you are not the subject of any sanctions administered by the United Nations, the European Union, the United States Office of Foreign Assets Control (OFAC), His Majesty's Treasury (United Kingdom), Switzerland (SECO), or any other relevant sanctions authority, and you are not acting, directly or indirectly, on behalf of any such sanctioned person;

(d) the Digital Assets you supply, borrow or otherwise use in connection with the Services have been lawfully acquired, are beneficially owned by you, are not derived from any unlawful activity and are not subject to any lien, encumbrance or restriction inconsistent with their use in the Services;

(e) your access to and use of the Services does not and will not violate any Applicable Law to which you are subject, including any anti-money laundering, counter-terrorism financing, sanctions, securities, derivatives, tax or consumer protection law;

(f) you have not been previously suspended or removed from the Services, or banned from using comparable services, by reason of fraud, abuse, sanctions, AML/CTF concerns or any similar reason;

(g) you are interacting with the Services for your own account and at your own risk, and not on behalf of any third party, unless you are duly authorised to do so and you have disclosed such fact to the Operator upon request;

(h) you will not use any virtual private network, proxy server, anonymising network, mirror, alternative front-end or similar technology to circumvent any geographic, technical or compliance restriction imposed by the Operator;

(i) you have an adequate understanding of the operation, characteristics and risks of public blockchains, Smart Contracts, decentralised finance, Digital Assets, leveraged positions, oracle-based systems and the Stellar network in particular, and you accept all risks associated with the use of the Services;

(j) you have not relied on any statement, representation, warranty, advice or undertaking made by the Operator (whether on the Site, in the Documentation or otherwise) other than as expressly set out in these Terms; and

(k) all information you provide to the Operator (including upon request, where applicable) is true, accurate, complete and not misleading.

Where you access the Services on behalf of a legal entity, you additionally represent and warrant that: (i) such entity is duly organised, validly existing and in good standing under the laws of its jurisdiction of incorporation; (ii) you are duly authorised to bind such entity to these Terms; (iii) such entity, its directors, officers, beneficial owners (holding 25% or more of the equity or voting rights) and authorised representatives are not subject to sanctions; and (iv) you have completed all internal corporate authorisations required for the use of the Services.

5. Restricted Jurisdictions and Sanctions

5.1. The Services are not offered, and may not be accessed or used, by any person who is located in, ordinarily resident in, organised under the laws of, or a citizen or national of any of the following Restricted Jurisdictions: *the United States of America (including its territories and possessions); the United Kingdom; Canada; the People's Republic of China; the Russian Federation; the Republic of Belarus; the Islamic Republic of Iran; the Democratic People's Republic of Korea (North Korea); the Republic of Cuba; the Syrian Arab Republic; the Republic of Sudan; South Sudan; the Republic of Yemen; the Republic of Venezuela; the Republic of Iraq; Libya; Somalia; Myanmar (Burma); Afghanistan; the Republic of Zimbabwe; the Central African Republic; the Democratic Republic of the Congo; the temporarily occupied territories of Ukraine (the Autonomous Republic of Crimea, Sevastopol, the so-called Donetsk People's Republic, the Luhansk People's Republic, and any other territories of Ukraine temporarily not under the control of the Government of Ukraine)*; and any other jurisdiction subject to comprehensive sanctions administered by the United Nations Security Council, the European Union, OFAC, HM Treasury or any equivalent authority (the **"Restricted Jurisdictions"**).

5.2. The Operator reserves the right, at any time and at its sole discretion, to update the list of Restricted Jurisdictions, to deny or limit access to the Services on the basis of country, region, applicable law or compliance considerations, and to implement geo-blocking, IP filtering, sanctions screening, blockchain analytics or any other technical, contractual or operational measure to enforce such restrictions.

5.3. Use of the Services from a Restricted Jurisdiction, whether directly or through any anonymising or location-masking technology, is strictly prohibited and constitutes a material breach of these Terms. The User is solely responsible for compliance with all applicable export controls, sanctions and laws in each jurisdiction from which the User accesses the Services.

6. Wallet Connection and Authentication

To interact with the Protocol through the Site, the User must connect a self-custodial Wallet using a supported integration method (including WalletConnect-compatible protocols and supported wallet extensions). The Operator does not maintain user accounts, does not collect login credentials and does not require the creation of any username or password. Identification of the User within the Protocol is performed solely on the basis of the User's Wallet Address (and, where applicable, an associated ObligationKey).

The User is solely and exclusively responsible for: (a) the security and confidentiality of the Wallet, the private keys, the seed phrases and any recovery materials associated therewith; (b) all transactions signed using the Wallet, whether or not authorised by the User; (c) maintaining sufficient XLM or other native asset balance to pay any Network Fee required to submit transactions; and (d) ensuring that the device, browser and software used to access the Services are free from malware, keyloggers and other security threats. The Operator has no ability to recover, restore or reset a Wallet, retrieve a lost private key or seed phrase, or reverse a signed transaction.

The Site may store certain non-personal user-interface settings (including, by way of example, the User's selection between Testnet and Public network, theme preferences and similar local interface state) in the User's browser local storage. Such information remains on the User's device and is not transmitted to or stored by the Operator. Further details are set out in the Privacy Policy.

7. Protocol Functionality

7.1. General

The Services provide an interface to a set of features made available by the Protocol, including (i) supplying Digital Assets to Pools, (ii) borrowing Digital Assets from Pools against eligible collateral, (iii) opening and closing leveraged positions through the Multiply feature, (iv) interacting with the Liquidation logic, and (v) accessing the Swap Service. The technical mechanics, formulas and parameters governing each feature are set out in the Documentation. The User acknowledges and agrees that the Documentation forms an integral part of the User's informed consent to these Terms.

7.2. Multiple positions per Wallet

A single Wallet Address may maintain multiple, isolated Obligations within the same market by means of different ObligationKey seeds (for example, a standard supply-and-borrow Obligation, an earn-only Obligation, or a paired Obligation used for composed strategies). The User is solely responsible for selecting the Obligation type appropriate to the User's intended activity and for the consequences of allocating supplies, plain collateral or Borrows between separate

Obligations. Health Factor, borrowing capacity and Liquidation eligibility are computed at the level of each individual Obligation and are not aggregated across Obligations belonging to the same Wallet. The User acknowledges that the same Wallet may not simultaneously hold a supply position and a Borrow in the same Pool within a single Obligation, and that, where the User wishes to maintain both exposures in the same Pool, the User must use separate Obligations identified by distinct seeds.

7.3. Supply (Earn) and Collateral Only

Supplying a Digital Asset to a Pool entitles the User to receive supply share tokens (commonly referred to as **"jTokens"**) representing the User's pro-rata share of the Pool. The User does not have any contractual claim against the Operator in respect of any supplied Digital Asset, and any yield earned by the User accrues automatically through the Smart Contracts based on borrower interest, the Pool's utilisation, the applicable interest rate model, withdrawal throttles, the take rate and the operation fees, all as set out in the Documentation. Supply APY figures displayed on the Site are estimates only, computed on the basis of current on-chain conditions, and may change at any time.

At the time of supply, the User may elect to designate all or part of a deposit as "Collateral Only" (plain collateral) rather than as default yield-earning supply. Collateral Only deposits do not earn yield, are prioritised by liquidators in the event of a Liquidation, and remain eligible for withdrawal at any time provided that the Obligation remains healthy, irrespective of pool utilisation. Default yield-earning supply, by contrast, accrues interest but its withdrawal may be restricted by available pool liquidity and by the withdrawal throttles described in Section 9. The User is solely responsible for selecting the deposit type appropriate to the User's liquidity preferences and risk tolerance.

Withdrawals from a Pool are subject to: (a) available pool liquidity at the moment of withdrawal; (b) any active withdrawal throttle, scarcity limit, scarcity exit fee or scarcity cooldown applicable to the relevant Pool; (c) the User's remaining borrowing capacity, where the User has open Borrows; and (d) any temporary freeze applied in connection with a Bad Debt event or other emergency action by a market admin or the Insurance Fund. The User may not be able to withdraw all or part of its supplied balance immediately, and accepts the corresponding liquidity risk.

Automatic deployment of idle liquidity. The Protocol may, where configured for a given Pool, automatically deploy unused (idle) liquidity into one or more external yield-bearing sources (such as third-party Stellar-based yield protocols, anchors or other yield-bearing instruments approved at the level of the relevant market). Such automatic deployment is intended to keep otherwise idle assets productive but introduces additional counterparty, smart contract, regulatory and liquidity risks attributable to the relevant external source, in addition to the risks set out in Section 9. The Operator does not guarantee the solvency, security, performance or continued operation of any such external yield source, does not control the selection or change of such sources, and is not responsible for any loss caused thereby. Withdrawals may, in such circumstances, be subject to delays where idle liquidity is currently deployed externally and must first be recalled.

7.4. Borrow

Borrowing a Digital Asset from a Pool requires the User to maintain eligible collateral within the same Obligation. The amount that can be borrowed by an Obligation is capped by its borrowing capacity, computed cross-pool by reference to the Open LTV and the liability factor of the relevant assets, the value of the collateral and the value of the existing Borrows, all as set out in the Documentation. Borrow positions accrue interest continuously, denominated in debt share tokens (commonly referred to as “dTokens”), at a Borrow APR that varies with utilisation and may be further adjusted by the Pool’s reactive interest rate modifier.

The User may at any time repay all or part of its outstanding Borrow, subject to any applicable operation or transaction fees. The User acknowledges that the failure to maintain a healthy Obligation may result in Liquidation, partial or total loss of collateral and other adverse consequences.

7.5. Health Factor and Liquidations

Each Obligation is assessed by reference to its Health Factor (HF) and its Liquidation Health Factor (LHF), as defined and computed in the Documentation. Where the Liquidation Health Factor of an Obligation falls below 1, the Obligation becomes eligible for Liquidation. Liquidations are permissionless and may be initiated by any third party at any time, in slices bounded by the applicable liquidation close factor and at a discount bounded by the applicable maximum liquidation incentive.

Liquidations are executed by independent third-party liquidators (typically operating automated bots), without any privileged role, allow-listing, sponsorship or coordination by the Operator. The Operator does not initiate, direct, control or benefit (otherwise than as may be reflected in fees routed to protocol beneficiaries through the Smart Contracts) from any Liquidation, and bears no liability for any loss suffered by the User as a result of a Liquidation.

The User acknowledges and accepts that Liquidations may occur as a result of: (i) adverse movements in the price of the supplied or borrowed Digital Assets; (ii) accrued interest increasing the value of the User’s outstanding Borrow; (iii) parameter changes applied through the Time-lock governance process (e.g., changes in Open LTV, Close LTV, liability factor, fees, scarcity parameters, or interest rate curve); and (iv) any combination of the foregoing. Where the

Obligation’s loan-to-value ratio exceeds the configured insolvency LTV, additional liquidation modes may apply (including modes that do not necessarily improve the Health Factor of the Obligation), as set out in the Documentation.

7.6. Multiply (Leverage)

The Multiply feature allows the User to open a leveraged position in a single atomic transaction by combining a flash borrow, a swap on a third-party decentralised exchange, a deposit and a borrow within the same Smart Contract call. Where the User selects to use the Multiply feature, the User authorises the corresponding sequence of operations and accepts that the leverage applied will amplify both potential gains and potential losses. The maximum multiplier available is bounded by the relevant Pool’s Open LTV and a safety factor.

The User acknowledges that opening or closing a Multiply position is dependent on (i) the availability of liquidity for the flash loan and for the borrow, (ii) the execution of the swap on the relevant decentralised exchange at a price within the User’s slippage tolerance and (iii) the prevailing on-chain conditions. The Operator does not guarantee that any Multiply transaction will succeed, that the resulting position will achieve any particular leverage or that any expected APY will materialise.

7.7. Swap Service (third-party aggregation)

7.7.1. The Swap Service is a non-custodial, front-end aggregation interface that allows the User to compare and route token swap orders to independent Swap Providers selected by the Operator from time to time. The Swap Service is provided as a convenience and does not constitute, and shall not be construed as, an offer, recommendation, solicitation or invitation to enter into any swap, exchange or other transaction.

7.7.2. The Operator does not itself execute, settle, match, clear or facilitate any swap transaction. The Operator does not custody, hold or otherwise control any Digital Asset at any point during a swap. Each swap is executed entirely by the relevant Swap Provider, on-chain or otherwise, under the Swap Provider’s own terms of service, fees, slippage parameters, regulatory framework and (where applicable) KYC/AML requirements.

7.7.3. The Operator does not endorse, audit, supervise or vet the Swap Providers, and makes no representation or warranty as to their solvency, security, regulatory status, performance, pricing, liquidity, availability or compliance with Applicable Law. The current list of integrated Swap Providers is published at *https://dev.alula.finance/transparency* (or any successor URL) and may be updated, expanded or restricted at any time without notice. The User is responsible for reviewing such list before initiating any swap.

7.7.4. By initiating a swap through the Swap Service, the User: (a) acknowledges that the swap is executed by a third-party Swap Provider and not by the Operator; (b) accepts that exchange rates, slippage, fees, processing times and outcomes are determined by the Swap Provider, the underlying smart contracts and prevailing market conditions; (c) accepts the irreversibility of swap transactions once submitted on-chain; (d) acknowledges that the in-Site disclaimer concerning the third-party nature of the Swap Service forms an integral part of these Terms and is binding upon the User; and (e) releases the Operator from any and all liability, claim or damage arising out of or in connection with the use of any Swap Provider, to the maximum extent permitted by Applicable Law.

7.8. Permissioned and restricted assets

Certain Pools or Digital Assets may be flagged within the Protocol as “Restricted” or otherwise subject to allow-list, KYC, accreditation, jurisdictional or other eligibility requirements (for example, in the context of real-world assets, tokenised securities or institutional pools). Where this is the case, the User may be unable to supply, borrow or use such asset as collateral until and unless the eligibility conditions are satisfied. The Operator may rely on the issuer or operator of the relevant asset, on the relevant market admin, or on a third-party compliance, KYC or eligibility provider to determine, verify and apply such eligibility, and the Operator does not independently audit or assume responsibility for such determinations. The Operator is not responsible for the imposition, application, modification, refusal or removal of any such eligibility decision by the issuer, the market admin or any third-party compliance provider, nor for any loss, delay or missed opportunity suffered by the User as a result thereof.

8. Fees

Use of the Services may give rise to several types of fees, including: (a) protocol-level operation fees, charged on certain operations (e.g., supply, withdrawal, borrow, flash loan) and routed to protocol beneficiaries (such as the Insurance Fund or treasury) in accordance with the Pool configuration and the Documentation; (b) the take rate, being a portion of borrower interest diverted to such protocol beneficiaries before reaching lenders; (c) scarcity exit fees, where applicable, in periods of high pool utilisation; (d) flash loan fees, on Multiply and other batch operations; (e) swap-related fees and slippage charged or implied by the relevant Swap Provider; and (f) Network Fees payable to the Stellar network for transaction submission. All such fees are deducted on-chain by the Smart Contracts and are not collected directly by the Operator from the User. The fee schedule applicable to each Pool may be modified through the Time-lock governance process described in the Documentation. The User is solely responsible for all fees applicable to the User’s transactions.

9. Risk Disclosures

The User expressly acknowledges and accepts each of the risks set out below, the list of which is non-exhaustive. The User confirms that it has the financial means and the technical and risk-management capacity to bear the consequences of such risks, including the total loss of any Digital Asset committed to the Services.

9.1. Smart contract risk

The Protocol is implemented as Smart Contracts deployed on the Stellar network. Despite security reviews, audits and testing, Smart Contracts may contain bugs, vulnerabilities, design flaws, misconfigurations or unforeseen edge cases that may be exploited or that may produce unintended outcomes. Such issues may result in the partial or total loss of supplied collateral, the inability to repay or close a Borrow, incorrect interest accrual, mispricing, mis-liquidation or other adverse outcomes. Audits do not guarantee the absence of vulnerabilities.

9.2. Liquidation risk

If the User's Liquidation Health Factor falls below 1, all or part of the User's collateral may be sold to third-party liquidators at a discount, and the User may incur a liquidation penalty. The User accepts that Liquidations may occur during periods of high volatility, network congestion, oracle disruption or unexpected parameter changes, and that the User may have limited or no ability to take corrective action in time. Maintaining a buffer below the maximum borrowing capacity is the User's sole responsibility.

9.3. Leverage and Multiply risk

Leverage amplifies both gains and losses. A relatively small adverse movement in the price of the deposit asset can produce a disproportionately large reduction in the User's equity and a rapid deterioration of the Health Factor. Higher multipliers reduce the price move required to trigger a Liquidation. The User accepts that opening, holding or closing a Multiply position is highly speculative and may result in the rapid and total loss of the User's margin.

9.4. Oracle risk and circuit breaker

The Protocol relies on SEP-40-compliant Oracles, including, where configured, an aggregated oracle with circuit breaker logic. Oracles may report inaccurate, delayed, stale or manipulated prices, may fail to update during periods of extreme volatility, or may be paused by the circuit breaker. As a result, certain User actions (including new Borrows, withdrawals of collateral, opening or closing of Multiply positions, and Liquidations) may be temporarily unavailable. Conversely, where the circuit breaker is not triggered, the Protocol will rely on the price provided, even if such price subsequently proves to be inaccurate. The Operator is not responsible for any loss caused by an Oracle malfunction or by an Oracle reporting an inaccurate price.

9.5. Withdrawal throttles and scarcity

Pools are subject to utilisation-based withdrawal throttles, scarcity limits, scarcity cooldown periods and scarcity exit fees, as set out in the Documentation. In periods of high utilisation, the User may be unable to withdraw the full amount of its supplied position immediately, may be required to wait for a cooldown period to elapse and may incur additional exit fees. Plain-collateral deposits are subject to similar constraints in the context of borrowing capacity and Health Factor.

9.6. Bad Debt and loss socialisation

In rare circumstances, the value of an Obligation's collateral may become insufficient to cover the value of its outstanding Borrow even after Liquidation. Such residual loss is referred to as Bad Debt. Where Bad Debt is detected, the Protocol will (i) automatically freeze deposits and withdrawals in the affected Pool to protect existing Users, (ii) attempt to cover the loss from the Insurance Fund through the issue/claim flow described in the Documentation, and (iii) where the Insurance Fund is insufficient, socialise the residual loss across the Pool's suppliers in proportion to their respective shares. The User accepts that, as a supplier, the User may suffer a partial loss of supplied capital as a result of such socialisation.

9.7. Flash loans, batch operations and atomicity

The Protocol supports flash loans and composable batch operations. Flash loans may be used by third parties to attempt arbitrage, Liquidations, oracle manipulation, MEV (maximal extractable value) extraction or other strategies that may incidentally affect the User's position. Failure of any step within a batch results in the reversion of the entire batch; however, the User remains responsible for any Network Fee paid to broadcast the failed transaction.

9.8. Network and infrastructure risk

The Services depend on the proper functioning of the Stellar network and on third-party infrastructure including RPC providers, indexers, wallet software and front-end hosting. Network congestion, soft or hard forks, governance disputes, validator misbehaviour, denial-of-service attacks, RPC outages, downtime, censorship or any other infrastructure event may impair the User's ability to access the Services, broadcast transactions, monitor positions or react to changes. The Operator is not responsible for any such event.

9.9. Network Fee (gas) risk

All transactions submitted through the Services require the payment of a Network Fee in the native asset of the relevant network (XLM in the case of Stellar). Network Fees are not paid to the Operator, fluctuate based on network conditions and may, during periods of congestion, become significantly elevated. The User is solely responsible for maintaining a sufficient balance of the relevant native asset to broadcast and finalise transactions. Failed transactions, transactions that revert (including atomic batches that fail at any step), and transactions that the User signs but that are subsequently dropped from the network may still result in a Network Fee being borne by the User without any corresponding economic benefit. The Operator is not liable for any Network Fee paid by the User in connection with any unsuccessful, reverted or otherwise unproductive transaction.

9.10. Asset risk and stablecoin de-pegging

Digital Assets supported by the Protocol are subject to extreme price volatility, illiquidity, listing and de-listing decisions, technical failures (e.g., issuance contract bugs, supply manipulation), regulatory action and counterparty risk in respect of their issuers. Stablecoins, including USDC and EURC, may lose their peg to the underlying fiat currency, become non-redeemable, be frozen by their issuers, or otherwise fail to maintain stability. The User accepts the full risk of holding, supplying, borrowing or being exposed to any such asset through the Protocol.

9.11. Bridge and cross-chain risk

Where the Protocol or any of its features supports, now or in the future, interoperation with networks other than Stellar (whether by means of a token bridge, cross-chain message-passing protocol, wrapped asset, or any other cross-chain mechanism), such interoperation depends on independent third-party infrastructure (the "Bridges"). Bridges have historically been among the highest-risk components of the Digital Asset ecosystem and have been the subject of major exploits resulting in the partial or total loss of bridged assets. The User accepts all risks arising from the use of any such Bridge, including without limitation custody risk in respect of the Bridge operator, smart contract risk in respect of the Bridge contracts, validation and consensus risk, censorship risk, and the risk that wrapped or bridged assets fail to track the value of, or fail to be redeemable for, the underlying asset. The Operator does not control, audit or assume any responsibility for any Bridge.

9.12. Slippage and swap execution risk

Swap transactions and the swap leg of Multiply operations are subject to slippage, MEV, sandwich attacks, low liquidity, partial fills, failed routes and other execution risks inherent to decentralised exchanges. The User is responsible for setting an appropriate slippage tolerance and accepts that the executed price may differ materially from any price quoted on the Site.

9.13. Wallet, key and operational security risk

Loss, theft, compromise or misuse of the User's Wallet, private keys, seed phrases, recovery materials or signing devices may result in the irreversible loss of all Digital Assets associated therewith. Phishing, fake websites, malicious browser extensions, social engineering, swap-and-replace attacks (e.g., replacing a destination address) and similar threats are common in the Digital Asset ecosystem. The User is solely responsible for verifying every transaction before signing, including the destination address, the amounts and the smart contract being interacted with.

9.14. Governance, parameter change and Time-lock risk

The Protocol allows market admins to modify pool and market parameters (including Open LTV, Close LTV, liability factors, fees, take rate, scarcity parameters, status flags and the swap provider) through a Time-lock governance process. Such modifications, although subject to a Time-lock, may adversely affect the User (for example, by reducing borrowing capacity, increasing the cost of borrowing, restricting withdrawals or causing previously healthy positions to become liquidatable). The duration of the Time-lock applicable to a given market is configured at deployment of such market and cannot subsequently be modified; in particular, it cannot be extended retroactively. The User is responsible for reviewing the Time-lock duration of any market in which the User maintains a position, for assessing whether such duration affords the User sufficient time to react to announced parameter changes, and for monitoring announcements of pending parameter changes.

9.15. Regulatory risk

The legal, regulatory, tax and accounting treatment of Digital Assets, decentralised finance and the Services is rapidly evolving and varies significantly across jurisdictions. New laws, regulations, supervisory expectations, judicial decisions or enforcement actions may, at any time and without notice: (i) make all or part of the Services unlawful in the User's jurisdiction; (ii) require the Operator to restrict, modify or discontinue the Services; (iii) impose additional registration, licensing, reporting, tax or compliance obligations on the User; or (iv) materially affect the value, transferability or usability of supported Digital Assets. The User assumes all such regulatory risk.

9.16. Tax responsibility

The use of the Services may give rise to taxable events, withholding obligations, reporting duties or other tax consequences in the User's jurisdiction(s) of residence and/or tax residence. The User is solely responsible for determining and discharging any such obligations, for maintaining adequate records of its transactions, and for seeking professional tax advice where appropriate.

9.17. No deposit insurance

The Services are not subject to any deposit guarantee scheme, investor compensation scheme, insurance fund (other than the on-chain Insurance Fund described in the Documentation, which is not a regulated guarantee scheme) or similar protection mechanism. There is no government, central bank or industry body backstopping the Services.

10. User Responsibilities

The User is solely and exclusively responsible for:

(a) verifying the accuracy and appropriateness of every transaction (including amounts, recipient addresses, asset selection, network selection, slippage tolerance and ObligationKey seed) before signing it;

(b) maintaining sufficient native asset balance to pay Network Fees, including in respect of failed or reverted transactions;

(c) selecting an appropriate level of leverage, where applicable, and monitoring the Health Factor of any Obligation;

(d) selecting between default yield-earning supply and Collateral Only deposits, in accordance with the User's liquidity preferences and risk tolerance;

(e) establishing, where required by the Stellar protocol, a Trustline to the relevant issued asset prior to interacting with such asset, including the cost (if any) and the operational implications thereof;

(f) reviewing the time-lock duration applicable to the relevant market and the announced governance changes thereunder;

(g) reading the Documentation, including the sections on risk management, Liquidation, oracle behaviour, withdrawal throttles, Bad Debt, automatic deployment of idle liquidity and Time-locked governance;

(h) ensuring the security of any device, browser, wallet or other tool used to access the Services;

(i) complying with all Applicable Law, including any tax, sanctions, anti-money laundering, securities or consumer protection law;

(j) refraining from any prohibited activity listed in Section 11; and

(k) bearing all consequences of any User error, including transactions sent to incorrect addresses, using incorrect networks, missing memo/tag identifiers, signing malicious transactions, or interacting with the Services from a non-supported wallet or front-end.

11. Prohibited Activities

The User shall not, and shall not assist, induce, encourage or attempt to assist any third party to:

(a) use the Services in connection with money laundering, terrorism financing, proliferation financing, fraud, corruption, tax evasion, sanctions evasion or any other unlawful purpose;

(b) supply, borrow or otherwise process through the Services any Digital Asset that is the proceeds of, or that is otherwise tainted by, criminal or unlawful activity;

(c) use the Services on behalf of, or for the benefit of, any person located in a Restricted Jurisdiction or subject to sanctions;

(d) provide false, inaccurate, misleading or fraudulent information to the Operator (including upon any due-diligence or compliance request);

(e) attempt to circumvent any sanctions screening, geographic restriction, security measure, withdrawal throttle, fee, liquidation logic, parameter change or other technical or contractual restriction;

(f) intentionally exploit any bug, vulnerability, mispricing, oracle anomaly, parameter misconfiguration or other defect of the Site or the Protocol for the User's own profit or the profit of any third party any value so extracted shall constitute unjust enrichment and shall be immediately restituted to the relevant counterparty and/or the Operator upon first demand);

(g) interfere with, disrupt, overload, attack or attempt to gain unauthorised access to the Site, the Protocol, any related infrastructure or any other User's account or Wallet, including via denial-of-service attacks, exploitation of front-end vulnerabilities or unauthorised use of an API;

(h) reverse engineer, decompile, disassemble, scrape, copy or otherwise misuse the Site, the Documentation or any proprietary content of the Operator (without prejudice to any rights granted under an applicable open-source licence);

(i) use any automated agent, bot, scraping tool or similar automated means to access the Site in a manner that imposes an unreasonable load on the Operator's infrastructure;

(j) impersonate any person or entity, or misrepresent any affiliation with the Operator or any third party;

(k) use the Services in any manner that, in the reasonable opinion of the Operator, exposes or is likely to expose the Operator to legal, regulatory, financial or reputational risk; and

(l) engage in any market manipulation, wash trading, layering or similar abusive practice through, or in respect of, the Services.

12. Anti-Money Laundering, Sanctions and Compliance

The Operator may, at its sole discretion and to the extent permitted or required by Applicable Law, implement and update from time to time technical and procedural measures designed to detect, prevent and address money laundering, terrorism financing, sanctions violations and other financial crime, including without limitation: (a) IP-based geographic restrictions; (b) blockchain analytics and Wallet Address screening, with the sole purpose of identifying Wallet Addresses associated with sanctions, criminal activity or other prohibited counterparties — for which purpose the Operator transmits the User's Wallet Address (and no other category of personal data) to an analytics or screening service, as further described in the Privacy Policy; (c) restriction or blocking of access to the Site for any Wallet Address that is, or is associated with, a sanctioned person, a sanctioned jurisdiction, a known criminal source of funds, a sanctioned protocol (e.g., a sanctioned mixer) or any other prohibited counterparty; and (d) compliance with lawful information requests, freezing orders, court orders or other measures issued by competent authorities. The legal basis for the transfer referred to in point (b) and the safeguards applicable to any international transfer are set out in the Privacy Policy and may be updated from time to time. Where the Operator restricts access for any Wallet Address, neither the Operator nor any of its representatives shall be liable for any loss, damage, missed opportunity or expense incurred by the User as a result. The Protocol itself, being a set of autonomous Smart Contracts, may continue to be accessible to the User by other means; the Operator does not, however, undertake any obligation to facilitate such access.

13. Privacy

The Operator’s collection and processing of personal data in the context of the Services is governed by the Privacy Policy published on the Site, which is incorporated into these Terms by reference. The User acknowledges that interactions with the Stellar network are public, that Wallet Addresses and on-chain transactions are visible on the Stellar ledger and on third-party block explorers, and that such on-chain data is, by its nature, immutable and outside the control of the Operator. The User is encouraged to read the Privacy Policy carefully before connecting a Wallet.

14. No Offer of Securities or Tokens

Nothing in these Terms, on the Site, in the Documentation or in any communication by the Operator constitutes an offer, recommendation, invitation or solicitation to buy, sell, subscribe for, exchange or hold any security, derivative, financial instrument, e-money, currency or token. No token is offered, distributed, allocated, airdropped or promised to Users by virtue of the User’s use of the Services. Any future digital asset that may be issued in connection with the Protocol shall be governed by separate documentation and shall not entitle Users to any retroactive claim by reason of prior use of the Services.

15. Intellectual Property

All trademarks, service marks, trade names, logos, designs, layouts, graphics, copy, audio-visual content, databases, software (other than open-source Smart Contract code) and other intellectual property rights subsisting in or associated with the Site and the Services (collectively, the **"Operator IP"**) are owned by, or licensed to, the Operator and are protected by intellectual property laws. Subject to the User's continuing compliance with these Terms, the Operator grants the User a limited, personal, non-exclusive, non-transferable, non-sublicensable, revocable licence to access and use the Site solely for the purpose of interacting with the Protocol for the User's own account.

Except as expressly authorised by these Terms or by Applicable Law, the User shall not (and shall not permit any third party to) copy, reproduce, distribute, publicly display, modify, translate, adapt, create derivative works from, lease, sell, sub-license or otherwise exploit any Operator IP. The User shall not remove or alter any copyright, trademark or other proprietary notice. Smart Contract source code released under an open-source licence is governed by such licence, separately from these Terms.

16. Third-Party Services and Content

The Site may contain references, links, integrations or interoperability layers to third-party websites, services, content or smart contracts (including, without limitation, Wallet providers, RPC providers, Oracles, Swap Providers, block explorers, decentralised exchanges, Bridges, blockchain analytics providers, third-party compliance providers, external yield-bearing protocols and educational resources). The Operator does not control, sponsor, endorse, audit or assume any responsibility for any such third party. The User's access to or use of any third-party service is at the User's own risk and is subject to such third party's own terms, policies and pricing.

17. Irreversibility and No Refunds

The User acknowledges and agrees that transactions executed on the Stellar network are, once confirmed, generally irreversible. Without prejudice to mandatory rights under Applicable Law (where any such mandatory rights apply), the Operator has no ability to and shall not reverse, refund, recall or modify any transaction, including without limitation any Supply, Borrow, Liquidation, Multiply, repayment, withdrawal, swap or transfer to an incorrect address. Any value lost as a result of an irreversible transaction, a User error, an exploit or any other event shall be borne solely by the User.

18. Disclaimer of Warranties

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE SITE, THE SERVICES, THE PROTOCOL, THE DOCUMENTATION AND ANY CONTENT MADE AVAILABLE BY THE OPERATOR ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE. THE OPERATOR EXPRESSLY DISCLAIMS, AND THE USER WAIVES, ANY AND ALL WARRANTIES, INCLUDING WITHOUT LIMITATION WARRANTIES OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, COMPLETENESS, AVAILABILITY, UNINTERRUPTED OPERATION, ERROR-FREE PERFORMANCE, ABSENCE OF VIRUSES OR HARMFUL COMPONENTS, AND ANY WARRANTY ARISING FROM COURSE OF DEALING OR USAGE OF TRADE.

WITHOUT LIMITING THE FOREGOING, THE OPERATOR DOES NOT REPRESENT OR WARRANT: (A) THAT THE SITE, THE PROTOCOL OR ANY ORACLE, SWAP PROVIDER, BRIDGE, EXTERNAL YIELD SOURCE OR OTHER THIRD-PARTY SERVICE WILL BE AVAILABLE, FREE FROM DEFECTS, ERRORS OR VULNERABILITIES, OR THAT ANY DEFECT WILL BE CORRECTED; (B) THAT THE SERVICES WILL MEET THE USER'S REQUIREMENTS OR EXPECTATIONS; (C) THAT ANY APY, RATE, RETURN, ESTIMATE OR PROJECTION DISPLAYED ON THE SITE WILL BE ACHIEVED; (D) THAT ANY ASSET PRICE, ORACLE OUTPUT OR SWAP QUOTE IS ACCURATE; OR (E) THAT THE SERVICES COMPLY WITH ANY LAW OR REGULATION OF ANY PARTICULAR JURISDICTION OTHER THAN AS EXPRESSLY STATED IN WRITING BY THE OPERATOR.

19. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL THE OPERATOR, ITS AFFILIATES, AND THEIR RESPECTIVE DIRECTORS, OFFICERS, EMPLOYEES, AGENTS, CONTRACTORS, ADVISORS AND LICENSORS (TOGETHER, THE "PROTECTED PARTIES") BE LIABLE TO THE USER OR ANY THIRD PARTY FOR ANY: (A) INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE OR EXEMPLARY DAMAGES; (B) LOSS OF PROFITS, REVENUE, BUSINESS, GOODWILL, OPPORTUNITY, DATA, OR ANY OTHER INTANGIBLE LOSS; (C) DAMAGES RESULTING FROM PRICE VOLATILITY, ADVERSE MARKET MOVEMENTS, ORACLE FAILURES OR INACCURACIES, LIQUIDATION, BAD DEBT SOCIALISATION, WITHDRAWAL THROTTLES, GOVERNANCE PARAMETER CHANGES OR FORCE MAJEURE EVENTS; (D) DAMAGES CAUSED BY ANY THIRD PARTY, INCLUDING ANY SWAP PROVIDER, ORACLE, RPC PROVIDER, WALLET PROVIDER, LIQUIDATOR, BRIDGE, EXTERNAL YIELD SOURCE OR THIRD-PARTY

COMPLIANCE PROVIDER; (E) DAMAGES CAUSED BY THE NETWORK CONGESTION, OUTAGE, FORK, DOWNTIME OR FAILURE OF THE STELLAR NETWORK OR ANY OTHER NETWORK; (F) DAMAGES RESULTING FROM USER ERROR, INCORRECT WALLET ADDRESSES, INCORRECT NETWORK SELECTION, MISSING MEMO/TAG IDENTIFIERS, COMPROMISED DEVICES OR LOST PRIVATE KEYS; (G) DAMAGES CAUSED BY EXPLOITS, HACKS, MALWARE, PHISHING OR OTHER MALICIOUS ACTS BY ANY THIRD PARTY; OR (H) ANY OTHER DAMAGE ARISING OUT OF OR IN CONNECTION WITH THE USER'S USE OR INABILITY TO USE THE SERVICES, EVEN IF ANY PROTECTED PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

WITHOUT PREJUDICE TO THE FOREGOING, THE TOTAL AGGREGATE LIABILITY OF THE PROTECTED PARTIES, COMBINED, FOR ANY AND ALL CLAIMS ARISING OUT OF OR IN CONNECTION WITH THESE TERMS OR THE SERVICES SHALL NOT EXCEED THE LESSER OF (I) THE AMOUNT OF FEES (IF ANY) ACTUALLY RECEIVED BY THE OPERATOR DIRECTLY FROM THE USER IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM, AND (II) ONE HUNDRED UNITED STATES DOLLARS (USD 100). THE LIMITATIONS AND EXCLUSIONS SET OUT IN THIS SECTION REFLECT A REASONABLE ALLOCATION OF RISK BETWEEN THE PARTIES, AND THE PROVISION OF THE SERVICES TO THE USER IS PREDICATED UPON THESE LIMITATIONS.

Nothing in these Terms shall exclude or limit any liability of the Operator that cannot be lawfully excluded or limited under Applicable Law (including, where applicable, liability for fraud or wilful misconduct).

20. Indemnification

To the maximum extent permitted by Applicable Law, the User shall indemnify, defend and hold harmless the Protected Parties from and against any and all claims, demands, actions, proceedings, judgments, losses, liabilities, damages, costs and expenses (including reasonable legal fees) arising out of or in connection with: (a) the User's use of, or interaction with, the Services or the Protocol; (b) the User's breach or alleged breach of these Terms; (c) the User's violation or alleged violation of any Applicable Law or any rights of any third party; (d) any inaccurate, misleading or fraudulent information provided by the User; or (e) the User's negligence, wilful misconduct or unlawful conduct. The Operator may, at its own expense, assume the exclusive defence and control of any matter otherwise subject to indemnification, in which case the User shall fully cooperate. The User shall not settle any matter without the Operator's prior written consent.

21. Suspension and Termination of Access

The Operator may, at any time and at its sole discretion, with or without prior notice, suspend, restrict, terminate or revoke the User's access to all or part of the Site and the Services, in particular where: (a) the User has breached or is suspected of having breached these Terms, the Policies or any Applicable Law; (b) access has been requested or required by a competent authority; (c) the User's Wallet Address is identified as being associated with sanctions, criminal activity or other prohibited conduct; (d) suspension is necessary to protect the integrity, security or solvency of the Services or other Users; or (e) for any other reason that the Operator considers appropriate, acting reasonably.

Termination of access to the Site does not, by itself, terminate any User's position within the Protocol; the Smart Contracts may continue to operate independently. Upon termination, all licences and rights granted to the User under these Terms shall immediately cease. Sections 2, 9, 10,11, 13–20, 22, 23 and 24 shall survive termination, together with any other provision that, by its nature, is intended to survive.

22. Force Majeure

The Operator shall not be liable for any failure to perform, delay in performance or interruption of the Services to the extent caused by any event beyond its reasonable control, including without limitation acts of God, natural disasters, epidemics, pandemics, war, armed conflict, terrorism, civil unrest, acts of any governmental or supranational authority, sanctions, changes in law, embargoes, strikes, labour disputes, power or telecommunications failures, internet service disruptions, cyber-attacks, hacks, exploits, denial-of-service attacks, blockchain network forks, congestion or failures, oracle failures, Bridge failures, third-party service provider failures or any other force majeure event. The Operator shall use reasonable efforts to mitigate the effect of such event.

23. Governing Law and Dispute Resolution

23.1. Governing law. These Terms, and any non-contractual obligations arising out of or in connection with them, shall be governed by and construed in accordance with the laws of **the Republic of Panama**, without regard to its conflict-of-laws principles. The United Nations Convention on Contracts for the International Sale of Goods does not apply to these Terms.

23.2. Informal resolution. Before initiating any formal dispute, the User shall first contact the Operator in writing at **support@alula.finance** , setting out the nature of the dispute and the relief sought, and the Parties shall negotiate in good faith for a period of at least thirty (30) days to resolve the dispute amicably.

23.3. Arbitration. Any dispute, controversy or claim arising out of or in connection with these Terms, including any question regarding their existence, validity, interpretation, performance, breach or termination, that is not resolved through informal negotiation shall be referred to and finally resolved by arbitration under the **Rules of Arbitration of the International Chamber of Commerce (ICC)**, which Rules are deemed to be incorporated by reference into this Section. The number of arbitrators shall be one (1). The seat of arbitration shall be **Panama City, Republic of Panama**. The language of the arbitration shall be English. The award rendered by the arbitrator shall be final and binding upon the Parties.

23.4. Class action waiver. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE USER AND THE OPERATOR EACH WAIVE ANY RIGHT TO BRING OR PARTICIPATE IN ANY CLASS, COLLECTIVE, REPRESENTATIVE OR CONSOLIDATED ACTION OR ARBITRATION AGAINST THE OTHER. CLAIMS SHALL BE BROUGHT IN AN INDIVIDUAL CAPACITY ONLY. THE USER FURTHER WAIVES, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT TO A JURY TRIAL.

23.5. Interim relief. Notwithstanding the foregoing, either Party may seek interim, injunctive or equitable relief from a competent court of law to prevent imminent and irreparable harm, including the misappropriation of intellectual property or confidential information.

24. Miscellaneous

24.1. Entire agreement. These Terms, together with the Policies, constitute the entire agreement between the User and the Operator in respect of the Services and supersede all prior or contemporaneous communications, representations and understandings (whether oral or written).

24.2. Severability. If any provision of these Terms is held to be invalid, illegal or unenforceable, the remaining provisions shall continue in full force and effect, and such invalid provision shall be replaced by a valid provision that most closely approximates the economic intent of the original.

24.3. No waiver. The failure or delay by the Operator to exercise or enforce any right or provision under these Terms shall not constitute a waiver of such right or provision.

24.4. Assignment. The User may not assign, transfer or sublicense any of its rights or obligations under these Terms without the prior written consent of the Operator. The Operator may freely assign or transfer these Terms (including in connection with a merger, reorganisation, sale of assets or by operation of law) without the User's consent.

24.5. Notices. Notices to the Operator shall be sent in writing to support@alula.finance (or any successor address communicated by the Operator on the Site). Notices to the User shall be deemed validly given when posted on the Site, displayed in the Site interface upon Wallet connection, or otherwise communicated through any reasonable means selected by the Operator.

24.6. Electronic communications. The User consents to receive communications, agreements, disclosures and notices from the Operator electronically (including through the Site). Such electronic communications satisfy any legal requirement that such communications be in writing.

24.7. Headings. Headings are for convenience of reference only and shall not affect the interpretation of these Terms.

24.8. Language. These Terms are concluded in English. Any translation is provided for convenience only; in the event of any inconsistency, the English version shall prevail.

24.9. Relationship of the Parties. Nothing in these Terms creates any agency, partnership, joint venture, employer-employee, fiduciary, trust or similar relationship between the User and the Operator. Neither Party has any authority to bind the other.

24.10. Third-party rights. Except as expressly provided in respect of the Protected Parties (who may rely on Sections 18, 19, 20 and 22), no person who is not a Party to these Terms shall have any right under any law (including any law on contracts (rights of third parties)) to enforce any provision hereof.

25. Contact

Operator: Alula Finance Corp

Registration No.: 155782425

Registered office: 55th Street East, SL55 Building, 21st Floor, Office 3, Panama City, Republic of Panama

Email: support@alula.finance

Site: https://alula.finance | https://docs.alula.finance | https://dev.alula.finance/transparency